

25NWCV04084 25NWCV04084

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Case Number: 25NWCV04084 Hearing Date: August 4, 2026 Dept: P

CABRERA v. AMERICAN HONDA MOTOR CO., INC.

CASE NO.: 25NWCV04084

HEARING: 08/04/2026 @ 9:30 AM

#8

TENTATIVE ORDER

I.

Plaintiff Maria Cabrera's motion to compel Defendant to produce its PMQ for deposition with production of documents is GRANTED.

II.

Plaintiff's

request for monetary sanctions is GRANTED in the amount of \$1,110 against Defendant and its counsel of record.

Moving party to give notice.

Plaintiff Maria Cabrera (Plaintiff) moves to compel Defendant American Honda Motor Co., Inc. (Defendant) to produce a person most qualified (PMQ) to appear for deposition with production of documents.

Background

On November 17, 2025, Plaintiff filed this lemon law action against Defendant and Does 1 through 10. The complaint alleges that Plaintiff experienced defects and nonconformities to warranty with her 2024 Honda Odyssey. (Subject Vehicle). (Complaint, ¶¶ 16-17.) The complaint asserts one cause of action for breach of express warranty under the Song-Beverly Consumer Warranty Act.

Legal Standard

Under Code of Civil Procedure section 2025.450, subd. (a), a party may move to compel a deponent's attendance and production for inspection of documents if after serving the deposition notice the responding party fails to serve valid objections and fails to appear for the deposition or produce any document described in the deposition notice. A motion under Code of Civil Procedure section 2025.450, subd. (a) must (1) provide specific facts showing good cause justifying the production for inspection of any document and (2) be accompanied by a meet and confer declaration. (Code Civ. Proc., § 2025.450, subd. (b).)

Meet and Confer

Code of Civil Procedure section 2025.450, subd. (b)(2) provides requires the moving party to file a meet and confer declaration under Section 2016.040 "or, when the deponent fails to attend the deposition and produce the documents...a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b)(2).) The meet and confer declaration "shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., § 2016.040.)

Plaintiff's counsel states that he sent over five emails to defense counsel regarding defense counsel's non-appearance and to arrange alternative dates, but did not get any responses. (Lupinek Decl., ¶ 8.) Therefore, Plaintiff adequately complies with the meet and confer requirement.

Discussion

Plaintiff moves to compel Defendant to produce its PMQ for deposition with production of documents on the grounds that Defendant failed to produce a PMQ for a properly noticed deposition and did not provide alternative

dates.

Plaintiff initially noticed a deposition of Defendant's PMQ for February 24, 2026 with twenty-six matters for examination and seventeen requests for document production. (Lupinek Decl., ¶ 3.) Defendant did not serve timely objections to the notice. (Lupinek Decl., ¶ 4.) "On February 24, 2026, Plaintiff sent Defendant a video link to enable Defendant's witness to participate in the deposition. Plaintiff also informed Defendant that no objections had been received." (Lupinek Decl., ¶ 6.) As Defendant did not appear, Plaintiff recorded Defendant's non-appearance. (Lupinek Decl., ¶ 7.) Between February 25, 2026 and May 11, 2026, Plaintiff sent five emails inquiring about the non-appearance and requesting alternative dates. (Lupinek Decl., ¶ 8.) Plaintiff has not received any responses. (Lupinek Decl., ¶ 8.)

Given that Plaintiff is entitled to depose Defendant's PMQ and Defendant has failed to appear and failed to provide reasonable alternative dates, the Court finds an order compelling the deposition of Defendant's PMQ appropriate.

Matters for Examination

There are twenty-six matters for examination at issue. The matters for examination seek information related to Defendant's policies and procedures regarding the Subject Vehicle, training policies, repairs to the Subject Vehicle, and Defendant's decision not to repurchase. (Lupinek Decl., Exh. A.)

The Court notes that all that is required under Code of Civil Procedure section 2025.230 is that Plaintiff provides matters for examination to guide Defendant in selecting a PMQ for deposition. Code of Civil Procedure section 2025.230 provides, in relevant part, that "[i]f the deponent named is not a natural person, the deposition notice shall describe with reasonable particularity the matters on which examination is requested. In that event, the deponent shall designate and produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent."

Here, the Court finds that the matters for examination are relevant to Plaintiff's claims and described with reasonable particularity. Therefore, this motion is granted as to Matters for Examination Nos. 1-26.

Requests for Production

The notice of deposition contains seventeen requests for production of documents.

A request for production of documents in a deposition notice need only specify with reasonable particularity the materials or category of materials to be produced by the deponent. (Code Civ. Proc., § 2025.220, subd. (a)(4).) Where production of documents is sought in connection with the deposition, the motion must set forth specific facts showing good cause justifying the production. (Code Civ. Proc., § 2025.450 subd. (b)(1).) These facts must also be set forth in a separate statement filed by the moving party. (Cal. Rules of Court, rule 3.1345(a)(5).) This burden "is met simply by a fact-specific showing of relevance." (TBG Ins. Servs. Corp. v. Superior Court (2002) 96 Cal.App.4th 443, 448.)

Plaintiff argues that the requests for production seek information to determine whether Defendant acted in good faith and in a manner that comports with the Song-Beverly Act. Plaintiff argues that this is relevant to her claim for a civil penalty.

Upon review of the requests for production, the Court finds that the requests for production are reasonably particularized and supported by good cause.

Accordingly, Plaintiff's motion to compel Defendant to produce its PMQ for deposition with production of documents is GRANTED.

Defendant's PMQ is ORDERED to appear for a deposition as to Matters for Examination Nos. 1-26 and Production of Documents Nos. 1-17 within 60 days of this Order. The parties shall meet and confer to determine the date, time, and location of the deposition. This date may be extended by agreement of the parties.

Sanctions

Plaintiff requests monetary sanctions against Defendant and its counsel of record.

"If a motion under subdivision (a) is granted, the court shall impose a monetary sanction... in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., §2025.450, subd. (g)(1).)

The Court finds monetary sanctions warranted against Defendant and its counsel of record for failing to appear and to respond to efforts by Plaintiff to schedule a deposition. Plaintiff requests \$1,897.50 reflecting Plaintiff's counsel's hourly rate of \$525, 1 hour to draft the moving papers, 1.5 hours to review the opposition and reply, 1 hour to appear for the hearing, and a \$60 filing fee. (Lupinek Decl., ¶¶ 9-11.) The Court finds this amount unreasonably excessive and deducts 1.5 hours due to the lack of a timely opposition and simplicity of the issues.

Accordingly, Plaintiff's request for monetary sanctions is GRANTED in the REDUCED amount of \$1,110 against Defendant and its counsel of record. Defendant and its counsel of record are ORDERED to pay this amount within 60 days of this Order.